

9.	24CV0034	TAPIA vs. TAPIA et al
Attorney's Fees		

This partition action was filed on January 5, 2024, by Plaintiff Tapia in order to accomplish the division of real property in which Plaintiff, Defendant Villasenor and decedent Santiago Tapia each acquired a one-third interest in April, 2022 as tenants in common.

Defendant filed a demurrer to the Declaratory Relief and Accounting causes of action in the First Amended Complaint on July 24, 2024. The demurrer was sustained without leave to amend following a hearing on October 18, 2024, leaving only the Partition cause of action to be determined in the litigation.

Plaintiff filed a demurrer to Defendant's Answer on December 9, 2024. The parties filed into a Stipulation and Interlocutory Judgment on February 28, 2025, that based on newly revealed evidence that Santiago Tapia had conveyed his interest to Defendant prior to the filing of the partition action and no longer had an ownership interest. The Stipulation acknowledged Defendant's option to purchase the one-third interest that Plaintiff held in the property and proposed a procedure for that buy-out should it occur. Otherwise, the parties acknowledged the necessity of selling the property in order to distribute the value of each parties ownership interest.

The demurrer to the Answer was still pending at the time of that Stipulation, but on May 13, 2025, Plaintiff withdrew the motion.

On August 1, 2025, the parties again filed a Joint Stipulation agreeing on the appraised value of the property and a procedure for disbursement of funds following Defendant's election to buy out Plaintiff's one-third interest, but reserving the issue of the allocation of the costs of partition.

Defendant filed a motion for attorney's fees on December 8, 2025, under the partition statutes, which authorize the award of attorney's fees expended for "the common benefit".

Code of Civil Procedure §§ 874.010¹, 874.040². No opposition was filed to that motion. At that time Plaintiff's counsel had filed a motion to withdraw as counsel that was pending and did not file an opposition or appear on Plaintiff's behalf on Defendant's attorneys' fee motion. The motion for award of the Defendant's attorneys' fees was granted following hearing on January 16, 2026.

Plaintiff now files a motion for attorneys' fees, arguing that the fees expended were for the common benefit because Defendant failed to complete a buyout of the property between the time of the completion of the probate of Santiago Tapia's estate in April, 2022, and the filing of the litigation in January, 2024; failed to disclose the transfer of one-third ownership from Santiago Tapia to Defendant until late 2024, long after the partition action was filed and then only as the result of discovery; and failed to resolve the matter informally over the period of nearly two years that the litigation was pending. Plaintiff argues that the transfer of Santiago Tapia's interest was only revealed through discovery as part of this action, and the litigation created the necessary incentive for the parties to enter into the stipulations that ultimately resolved the conflict. During this period of years Plaintiff was not able to realize any economic benefit from or use of the property, which was occupied by Defendant, nor was she able to access the property to preserve or enhance its value. The property was appraised at approximately \$375,000 at the time that the probate of Santiago Tapia's estate was concluded in 2022; the appraised value at the conclusion of the partition action was \$275,000 on 2024. Declaration of Sonia Tapia, dated March 6, 2026, paras. 12-13.

Defendant challenges this motion on the grounds that the partition action was not necessary, as the parties had always anticipated the buyout. However, the Court notes that Defendant in fact did not accomplish or even initiate that process until after the partition action was filed.

Defendant claims that the award of her attorneys' fees was the final determination of all attorneys' fees, but partition actions do not award fees to a prevailing party; rather, fees determined to be for "the common benefit" are recoverable. The Court finds that all attorneys'

¹ Code of Civil Procedure § 874.010: The costs of partition include:

(a) Reasonable attorney's fees incurred or paid by a party for the common benefit.

(b) The fee and expenses of the referee.

(c) The compensation provided by contract for services of a surveyor or other person employed by the referee in the action.

(d) The reasonable costs of a title report procured pursuant to Section 872.220 with interest thereon at the legal rate from the time of payment or, if paid before commencement of the action, from the time of commencement of the action.

(e) Other disbursements or expenses determined by the court to have been incurred or paid for the common benefit.

² Code of Civil Procedure § 874.040: Except as otherwise provided in this article, the court shall apportion the costs of partition among the parties in proportion to their interests or make such other apportionment as may be equitable.

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fees expended in this action were for “the common benefit” by preserving the respective parties’ interest in a contentious process. As noted by Plaintiff, Defendant benefitted from the statutory protections and procedures of the partition statutes due to Plaintiff’s initiation of the litigation. The Court is empowered to apportion attorneys’ fees according to equitable considerations in a partition action. Lin v. Jeng, 203 Cal. App. 4th 1008, 1025 (2012).

Defendant further argues that any award of fees following Defendant’s recovery of fees is a motion for reconsideration pursuant to Code of Civil Procedure §1008; however, as the Court notes above, the Court is statutorily empowered to apportion costs of partition, including attorneys’ fees, according to equitable principles and in favor of any party who made expenditures for the common benefit. Accordingly, this second motion for attorney’s fees does not come within the concept of a motion for reconsideration of a prior order.

Defendant raises other issues that have little if anything to do with the attorney’s fee motion, such as the extended length of time it took to serve Defendant with Summons and Complaint in the action and who could be faulted for that delay, whether or not Defendant as paying rent during the years that she exclusively occupied and excluded Plaintiff from accessing the property in which Plaintiff held a one-third ownership interest, and whether Plaintiff’s declaration regarding the lowered value of the property between the time that it was appraised as part of the probate proceedings and the time that the parties had it appraised during the partition is supported by documentation. If Plaintiff’s valuation was inaccurate, Defendant could have countered it with contrary evidence from the probate appraisal, but she did not. These issues do not cut in favor of Defendant’s arguments against the apportionment of attorney’s fees, but they do inform the Court’s assessment of the equities.

Finally, Defendant argues that the amount of fees incurred are not reasonable. As an example, Defendant argues that during the period between August and December of 2025, a period of relative inactivity in the case, Plaintiff’s counsel issued eleven bills totaling \$5,959.45. This is not a correct statement. The Declaration of Amber Gill, dated March 12, 2026, Exhibit A, shows four invoices during this period totalling \$2,219, a total of just over five hours billed over a five-month period. Defendant’s counsel was also billing time during this period to address details of the real property transfer. Declaration of Elijah Underwood, dated December 12, 2025. The Court finds the billing rate of and the hours billed by Plaintiff’s counsel reasonable, especially given the non-responsiveness of Defendant to efforts to resolve the matter prior to and during the litigation and Defendant’s superior position as exclusive occupant of the property, both of which required comparatively greater efforts to bring the parties to resolution of the conflict.

TENTATIVE RULING #9: PLAINTIFF’S MOTION FOR AWARD OF ATTORNEY’S FEES IS GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.

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RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.